

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 6782 of 2019

Applicant :- Smt. Saroj Devi

Opposite Party :- Sri Gaurav Kumar, Executive Engineer Kesko

Counsel for Applicant :- Krishna Kant Vishwakarma

Hon'ble Mahesh Chandra Tripathi, J.

Heard learned counsel for the applicant.

The applicant is before this Court for a direction to initiate contempt proceeding against the opposite parties for wilful disobedience of the order dated 12.09.2018 passed in Writ Petition No.30908 of 2018 (Smt. Saroj Devi v. State of U.P. & Ors.), which for ready reference is quoted as under:-

"Heard Shri Krishna Kant Vishwakarma, learned counsel for the petitioner; Shri S.K. Yadav, learned counsel for the respondents no. 1 & 2 and learned Standing Counsel for the respondent no. 3.

The petitioner claims that she was eligible under 'Kutir Jyoti Yojna Programme', under which the persons below the poverty line and scheduled caste & scheduled tribes were admitted for electricity connection upto two kilowatt in the year 1997.

Learned counsel for the petitioner submits that under the said scheme the electricity charges were to be borne by the State. However, the electricity cards were issued, but no electricity connections were given although the authorities of the respondents were pressuring to pay the bill. One bill of 2003 has been filed along with writ petition for a sum of Rs. 5,461/-. It is further submitted that nothing happened thereafter although the petitioner filed an application to the authorities that no electricity connection was given, yet now a recovery citation for a sum of Rs. 68,243/- has been issued.

At this stage it is not clear as to what was the terms of the scheme under which the petitioner was admitted. That apart once the bill was issued in 2003 what did the petitioner do so long although the petitioner claims that no electricity connection was given. All these questions are questions of fact and the writ court will not go into such questions. However, the petitioner may approach the Executive Engineer under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 for redresal of her grievance.

In case the petitioners approaches the Executive Engineer by filing an application within 10 days from today, the Executive Engineer will consider the claim of the petitioner and pass appropriate order in accordance with law, as far as possible, within a period of one month from the date a certified copy of this order along with application is presented before it.

For a period of one month, no coercive action shall be taken against the petitioner pursuant to recovery citation, Annexure 7 to the writ petition.

With the aforesaid directions, the writ petition is disposed of."

Learned counsel for the applicant submits that a certified copy of the aforesaid order was submitted for compliance before the opposite parties but the opposite parties have wilfully not complied with the order and, thus, have committed civil contempt liable for punishment under Section 12 of the Contempt of Courts Act, 1971.

Prima facie a case of contempt has been made out. However, considering the facts and circumstances of the case, one more opportunity is afforded to the opposite parties to comply with the aforesaid order of the Court within three weeks from the date of production of a certified copy of this order.

The applicant shall supply a duly stamped registered envelope addressed to the opposite parties and another self-addressed stamped envelope to the office within three weeks from today. The office shall send a copy of this order along with the self-addressed stamped envelope of the applicant with a copy of contempt application to the opposite parties within one week, thereafter and keep a record thereof. The opposite party shall comply with the directions of the writ Court and intimate the applicant of the order through the self-addressed envelope within a week, thereafter.

With the aforesaid observations, this application is **disposed of** at this stage with liberty to the applicant to move a fresh application, if the order is not complied with by the opposite parties within the stipulated time as aforementioned.

Order Date :- 18.10.2019

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